

words "cases" and "controversies" are two complementary but somewhat different limitations. In part those words limit the business of federal courts to questions presented in an adversary context and in a form historically viewed as capable of resolution through the judicial process. And in part those words define the role assigned to the judiciary in a tripartite allocation of power to assure that the federal courts will not intrude into areas committed to the other branches of government. Justiciability is the term of art employed to give expression to this dual limitation placed upon federal courts by the case-and-controversy doctrine.

Justiciability is itself a concept of uncertain meaning and scope. Its reach is illustrated by the various grounds upon which questions sought to be adjudicated in federal courts have been held not to be justiciable. Thus, no justiciable controversy is presented when the parties seek adjudication of only a political question,¹⁰ when the parties are asking for an advisory opinion,¹¹ when the question sought to be adjudicated has been mooted by subsequent developments,¹² and when there is no standing to maintain the action.¹³ Yet it remains true that "[j]usticiability is . . . not a legal concept with a fixed content or susceptible of scientific verification. Its utilization is the resultant of many subtle pressures" *Poe v. Ullman*, 367 U. S. 497, 508 (1961).

Part of the difficulty in giving precise meaning and form to the concept of justiciability stems from the un-

¹⁰ See, e. g., *Commercial Trust Co. v. Miller*, 262 U. S. 51 (1923); *Luther v. Borden*, 7 How. 1 (1849).

¹¹ See, e. g., *United States v. Fruehauf*, 365 U. S. 146 (1961); *Muskrat v. United States*, 219 U. S. 346 (1911).

¹² See, e. g., *California v. San Pablo & T. R. Co.*, 149 U. S. 308 (1893).

¹³ See, e. g., *Tileston v. Ullman*, 318 U. S. 44 (1943); *Frothingham v. Mellon*, 262 U. S. 447 (1923).